

Suleman v. State of U.P.

Allahabad High Court · Division Bench · 20 May 2022 · Writ-C No. 4684 of 2022 · Writ-C No. 4684 of 2022 · **Writ disposed; petitioner relegated to Para 6.8 objection with eight-week stay of coercive recovery.**

HEADNOTE

A writ seeking to quash a recovery certificate and restrain coercive recovery is disposed of without examining merits. The consumer may file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; the distribution licensee must decide it after hearing within the next four weeks. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

The petitioner, Suleman, approached the Allahabad High Court seeking certiorari to quash a recovery certificate dated 26 October 2021 and a mandamus restraining the Power Distribution Corporation from coercive recovery. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period. The Court heard both sides and disposed of the writ on that statement.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery demand as alternate remedy

HOLDING

Without expressing any opinion on merits, the Court disposed of the writ, granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks. If so submitted, the objection shall be decided in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The Court treated a Para 6.8 objection as the statutory alternative to a writ challenging a recovery certificate, and disposed of the petition without examining merits. ¶ 4

fresh-objection-under-clause-6.8 The petitioner was given liberty to file a fresh Para 6.8 objection within four weeks, to be decided after hearing within the next four weeks, with a limited stay of coercive recovery. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE DATED 26.10.2021 AND THE UNDERLYING DEMAND

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4